

24STCV33937 24STCV33937

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-07-29

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Case Number: 24STCV33937 Hearing Date: July 29, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

29, 2026 TRIAL

DATE: December 6, 2027

CASE: Althea Doss v. Mohammed Khan

CASE NO.: 24STCV33937

MOTION

TO BE RELIEVED AS COUNSEL

I. INTRODUCTION

On April 30, 2026, Sharona Eslamboly Hakim, counsel for Plaintiff, Althea Doss, filed this Motion to be Relieved As Counsel.

The motion is unopposed.

II. LEGAL STANDARD

California Rules of Court, rule 3.1362 (Motion to Be Relieved as Counsel) requires (1) notice of motion and motion to be directed to the client (made on the Notice of Motion and Motion to be Relieved as Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and

without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052)); (3) service of the notice of motion and motion and declaration on all other parties who have appeared in the case; and (4) the proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)).

The court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client, and it does not disrupt the orderly process of justice. (See Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

III. DISCUSSION

Plaintiff's counsel seeks to be relieved as counsel of record for the following reasons: "There has been an irreparable breakdown of the attorney-client communications such that Plaintiffs [sic] counsel can no longer represent the plaintiff." (Form MC-052.)

Absent a showing of resulting prejudice, an attorney's request for withdrawal should be granted. (People v. Prince (1968) 268 Cal.App.2d 398, 406.)

Upon review, the court finds the Motion complies with California Rules of Court, rule 3.1362.

IV. CONCLUSION

Accordingly, the unopposed Motion to Be Relieved as Counsel is GRANTED and effective upon the filing of the proof of service of this signed order upon Plaintiff.

Counsel to give notice.

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Dated: July 29, 2026

Brock T. Hammond

Judge of the Superior Court